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GLOBAL BUSINESS MOBILITY - UK EXPANSION WORKER VISA



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GLOBAL BUSINESS MOBILITY - UK EXPANSION WORKER VISA

The Global Business Mobility – UK Expansion Worker Visa is for senior managers and specialist employees who wish to be assigned to the UK temporarily to undertake work related to the expansion of an overseas business in the UK. Sponsors may send a maximum of 5 workers at a time.

The UK Expansion Worker Visa route can only be used when the UK business has not yet started trading. If the business is already trading in the UK, you may be eligible for a Global Business Mobility – Senior or Specialist Worker Visa

(<https://immigrationbarrister.co.uk/personal-immigration/global-business-mobility-visa-senior-or-specialist-worker>) instead. If you are interested in setting up a new business in the UK, or you own an existing UK business, you may also be eligible for a **Skilled Worker visa via self-sponsorship** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/self-sponsorship-skilled-worker-visa/>), that is by being sponsored by your own UK company.

In order to secure a UK Expansion Worker Visa you will need to be sponsored to do a specific job, which meets certain skill and salary requirements, by an employer that has been licensed by the Home Office. We have published separate guidance for employers who are considering applying for a **UK Expansion Worker sponsor licence** (<https://immigrationbarrister.co.uk/business-immigration/sponsor-licences/uk-expansion-worker-sponsor-licence/>).

The Global Business Mobility – UK Expansion Worker Visa does not lead directly to settlement in the UK. However, you may be able to switch into another immigration route which does lead to settlement. Applicants may be joined or accompanied by a partner and dependent children.

Requirements for a Global Business Mobility – UK Expansion Worker Visa

(<https://www.google.co.uk>)

(In) order to qualify for a Global Business Mobility – UK Expansion Worker Visa, you will need to satisfy UK Visas and Immigration that:

- You are aged 18 or over;
- You are currently working for a business or organisation that is linked to your **UK sponsor** (<https://immigrationbarrister.co.uk/business-immigration/sponsor-licences/uk-expansion-worker-sponsor-licence/>) by common ownership or control;
- You have worked outside the UK for the linked business or organisation for a cumulative period of at least 12 months, unless you are a high earner earning £73,900 per year or more or you are a Japanese national seeking to establish a UK branch or subsidiary of the linked business or organisation under the UK-Japan Comprehensive Economic Partnership Agreement or you are a national or permanent resident of Australia seeking to establish a UK branch or subsidiary of your sponsor group under the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia;
- You have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) issued by your UK sponsor for the job you are planning to do;
- The job you are planning to do is genuine;
- The job you are planning to do is at an appropriate skill level;
- You will be paid a salary which equals or exceeds both a general salary threshold of £48,500 per year and the 'going rate' for the applicable SOC 2020 occupation code;
- You have enough money to support yourself without relying on public funds;
- You have provided a valid TB certificate, if required.

The exact requirements you will need to satisfy may vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Global Business Mobility – UK Expansion Worker Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.

Global Business Mobility – UK Expansion Worker Visa Overseas Work Requirement

If you are applying for a Global Business Mobility – UK Expansion Worker Visa, your gross annual salary is less than £73,900 (based on working a maximum of 48 hours per week) and you are not a Japanese national seeking to establish a UK branch or subsidiary of the linked business or organisation under the UK-Japan Comprehensive Economic Partnership Agreement or a national or permanent resident of Australia seeking to establish a UK branch or subsidiary of the sponsor group under the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia, then you must be

currently working for a business or organisation that is linked to your UK sponsor by common ownership or control and have worked outside the UK for this business or organisation for a cumulative period of at least 12 months. The work can have been done on an employee, self-employed contractor or other basis.

The 12 months' work outside the UK can have been accumulated over a historic period if you were continuously working for the linked business or organisation, in the UK or overseas, for at least 12 months prior to the date of application and any breaks have only been for statutory maternity, paternity, parental or shared parental leave, statutory adoption leave, sick leave, assisting with a national or international humanitarian or environmental crisis with the agreement of the sponsor group or taking part in lawful industrial action.

If you are earning £73,900 per year or more or you are a Japanese national seeking to establish a UK branch or subsidiary of the linked business or organisation under the UK-Japan Comprehensive Economic Partnership Agreement or you are a national or permanent resident of Australia seeking to establish a UK branch or subsidiary of the sponsor group under the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia (when the agreement comes into force or is provisionally applied) then you must be currently working for a business or organisation that is linked to your UK sponsor by common ownership or control, but you do not need to have been employed overseas for any specific period of time.

Global Business Mobility – UK Expansion Worker Visa Certificate of Sponsorship (CoS) Requirement

In order to obtain a Global Business Mobility – UK Expansion Worker Visa you will need to have a valid **Certificate of Sponsorship** (<https://immigrationbarrister.co.uk/certificates-of-sponsorship-all-you-need-to-know/>) for the job you are planning to do. Your Certificate of Sponsorship will need to have been issued by an employer that is authorised by the Home Office to **sponsor a UK Expansion Worker** (<https://immigrationbarrister.co.uk/business-immigration/sponsor-licences/uk-expansion-worker-sponsor-licence/>).

Your sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless you were last granted permission as a UK Expansion Worker and are applying to continue working for the same sponsor as in your last permission or you are the Authorising Officer for the sponsor and the sponsor has a provisional rating on the Home Office's register of licensed sponsors.

Your Certificate of Sponsorship must have been issued not more than 3 months before the date of your Global Business Mobility – UK Expansions Worker Visa application.

Your Certificate of Sponsorship must include certain mandatory information, including:

- Details of your name, job and salary;
- Confirmation that you have worked for your employer outside the UK for at least 12 months, unless you are a high earner earning £73,900 per year or more or you are a Japanese national seeking to establish a UK branch or subsidiary of the linked business

- or organisation under the UK-Japan Comprehensive Economic Partnership Agreement or you are a national or permanent resident of Australia seeking to establish a UK branch or subsidiary of the sponsor group under the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia (when the agreement comes into force or is provisionally applied);
- A start date which is no more than 3 months after the date of your Global Business Mobility – UK Expansion Worker Visa application;
 - Confirmation that the Certificate of Sponsorship has not been used in a previous application which was either granted or refused and has not been withdrawn by the sponsor or cancelled by the Home Office.

Genuine Job Requirement

In order to be granted a Global Business Mobility – UK Expansion Worker Visa, you will need to satisfy the Home Office that you are being sponsored to undertake a genuine job.

If there are reasonable grounds to believe that the job you are being sponsored to do does not exist, is a sham or has been created mainly so that you can apply for a Global Business Mobility – UK Expansion Worker Visa then your application will be refused.

The Home Office will also want to be satisfied that you have not entered into an arrangement whereby you will fill a temporary or permanent position with a third party who is not the sponsor, or undertake contract work which involves undertaking an ongoing routine role or providing an ongoing routine service to a third party who is not your sponsor.

Global Business Mobility – UK Expansion Worker Visa Job Skill Level Requirement

In order to qualify for a Global Business Mobility – UK Expansion Worker Visa, the job you are being sponsored to do must be an eligible job at or above a minimum skill level.

The job you are planning to do must be skilled to at least RQF Level 6 (graduate equivalent). You do not necessarily need to hold a degree, but the role must be equivalent to a graduate level role.

The Home Office has published a **list of jobs that are eligible for a Global Business Mobility – UK Expansion Worker Visa** (<https://www.gov.uk/government/publications/global-business-mobility-eligible-occupations-and-codes/global-business-mobility-eligible-occupations-and-codes>). The list includes the relevant occupation code, job type and related job titles.

The Home Office also sets out eligible jobs in **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>). Each eligible job has a SOC 2020 occupation code. You must be sponsored for a job in an eligible SOC 2020 occupation code listed in Appendix Skilled Occupations.

You will usually meet the job skill level requirement if the job you are being sponsored for is on the list. <https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>

(/)

However, your sponsor must choose an appropriate occupation code. If the Home Office has reasonable grounds to believe that your sponsor has not chosen the most appropriate occupation code then your application for a Global Business Mobility Visa will be refused.

In assessing whether your sponsor has chosen the most appropriate occupation code, the Home Office will consider factors such as whether they have shown a genuine need for the job as described, whether you have the appropriate skills, qualifications and experience needed to do the job as described and the sponsor's history of compliance with the immigration system.

Global Business Mobility – UK Expansion Worker Visa Salary Requirement

Employers seeking to transfer an employee under the Global Business Mobility – UK Expansion Worker Visa route must pay their skilled worker a salary which equals or exceeds both a general salary requirement and the 'going rate' for the occupation (as set out in the relevant occupation code mentioned above).

General salary requirement

The general salary requirement under the Global Business Mobility – UK Expansion Worker Visa route is £48,500 per year. Therefore, in most cases an applicant for a Global Business Mobility – UK Expansion Worker Visa must be paid a salary which equals or exceeds £48,500 per year and 100% of the pro-rated going rate for the occupation as set out in the SOC 2020 occupation code, whichever is higher.

The assessment of salary is based on guaranteed basic gross pay (up to 48 hours per week) plus allowances which are guaranteed to be paid for the duration of the employment in the UK (such as London weighting) or are paid as a mobility premium or to cover the additional cost of living in the UK.

If the applicant is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay, then work in excess of 48 hours in some weeks can be considered towards the salary threshold of £48,500, providing the average over a regular cycle (which can be less than, but not more than, 17 weeks) is not more than 48 hours a week. Any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met.

Going rate requirement

The Home Office has published a list of going rates for eligible Global Business Mobility occupation codes (<https://www.gov.uk/government/publications/global-business-mobility-going-rates-for-eligible-occupations/global-business-mobility-going-rates-for-eligible-occupations>)

eligible occupations). The Home Office also sets out the going rates for jobs that are eligible for a Global Business Mobility – UK Expansion Worker Visa in the **Appendix Skilled Occupations** (<https://www.gov.uk/guidance/immigration-rules/immigration-rules-appendix-skilled-occupations>).

The annual salaries stated are based on a 37.5-hour working week and must be pro-rated for other working patterns.

Your full weekly hours will be included when checking your salary against the going rate, even if you work more than 48 hours per week.

Immigration Skills Charge Requirement

Employers that are authorised by the Home Office to sponsor a UK Expansion Worker are not required to pay the Immigration Skills Charge.

Global Business Mobility – UK Expansion Worker Visa Financial Requirement

Subject to the exemption below, you will need to have cash funds of at least £1,270 available.

You will need to have held the money for at least 28 consecutive days ending not more than 31 days before the date of your Global Business Mobility – UK Expansion Worker Visa application.

If you are applying for permission to stay and have been in the UK with permission for 12 months or more at the date of application, you will meet the financial requirement and will not need to show funds.

Global Business Mobility – UK Expansion Worker Visa English Language Requirement

UK Expansion Worker Visa applicants do not need to satisfy an English language requirement.

Switching into the Global Business Mobility – UK Expansion Worker Visa Route

If you currently have leave to remain in another immigration category, you may extend your stay by switching into the Global Business Mobility – UK Expansion Worker Visa route unless you have, or were last granted, permission as a Visitor, Short-term student, Parent of a Child Student, Seasonal Worker, Domestic Worker in a Private Household or outside the Immigration Rules.

Duration of a Global Business Mobility – UK Expansion Worker Visa

(<https://www.google.co.uk>)

If your application for a Global Business Mobility – UK Expansion Worker Visa is approved, you will be granted entry clearance for either 1 year after the start date of the job detailed in your Certificate of Sponsorship or the time given on your Certificate of Sponsorship plus 14 days, whichever is shorter.

If you want to stay longer in the UK, you will be able to apply to extend your visa for a further 12 months. You will be able to stay in the UK for a maximum of 2 years on a UK Expansion Worker Visa.

Maximum Time in the Global Business Mobility Routes

If you have already spent time in the UK on any of the Global Mobility Routes or the former Intra-company routes then you may not be able to stay in the UK on a Global Business Mobility – UK Expansion Worker Visa for the full time period set out above.

This is because you can only stay in the UK for a maximum of 5 years in any 6 year period if you have previously spent time in any of the Global Business Mobility routes or the former Intra-company routes.

Conditions of Stay on a Global Business Mobility – UK Expansion Worker Visa

Global Business Mobility – UK Expansion Worker Visa holders are permitted to work for their sponsor in the job described on their Certificate of Sponsorship. They may also undertake a course of study and voluntary work. Access to public funds is not permitted.

Settlement on the Global Business Mobility – UK Expansion Worker Visa Route

The Global Business Mobility – UK Expansion Worker Visa does not lead directly to settlement in the UK. However, once in the UK, you may be able to switch into another immigration route which does lead to settlement, such as the **Skilled Worker** (<https://immigrationbarrister.co.uk/personal-immigration/long-term-work-visas/skilled-worker-visa/>) route or the **Innovator Founder** (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/innovator-founder-visa/>) route. You will need to satisfy the requirements of the immigration route that you wish to extend into. Details of all the main immigration routes, including whether they lead to settlement, are available on our website.

You may also be eligible to extend your stay until you qualify for settlement on the basis of Long Residence (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence-ilr/>).

Dependants of Global Business Mobility – UK Expansion Worker Visa Applicants

(<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

Global Business Mobility – UK Expansion Worker Visa holders can be joined or accompanied by a dependent partner over the age of 18 and dependent children under the age of 18.

Global Business Mobility Sponsor Licence Application

The Global Business Mobility routes are open to businesses of all sizes, providing they have a trading presence outside the UK and a qualifying link to a UK business.

In order to hold a Global Business Mobility sponsor licence, the UK business that will be receiving the worker must:

- Have an existing presence in the UK;
- Have qualifying links to an overseas business from which it will receive workers;
- Have suitable key personnel who will be responsible for the managing the licence; and
- Have systems in place to meet the sponsor licence duties.

Qualifying links to UK businesses are specific to the type of work assignment which is being undertaken in the UK.

In the case of a Global Business Mobility – UK Expansion Worker sponsor the UK business must provide credible evidence that it intends, and is able, to establish a new UK branch or wholly-owned subsidiary of an established overseas business. The overseas business must normally have been trading overseas for a minimum of 3 years (although there are some exceptions to this requirement).

Businesses that wish to apply for a UK Expansion Worker sponsor licence are required to have a UK footprint rather than a trading presence. This means that they should be able to provide evidence of either a UK premises or Companies House Registration, but they should not yet have begun trading in the UK.

The overseas business, on the other hand, will need to be active and trading. The Home Office will normally expect the overseas business to have traded for at least 3 years (although there are some exceptions).

The overseas business will also need to satisfy the Home Office that it is capable of successfully expanding into the UK. It will need to provide a credible business plan for expansion and demonstrate that it can finance its expansion plans. The Home Office will normally expect the overseas business to be a stable or growing business that has undertaken preparatory work towards expansion.

UK Expansion Worker sponsors will need to identify key personnel who will be responsible for managing the sponsor licence. If there is no suitable settled worker in the UK to take the role of the Authorising Officer (a senior and competent person responsible for the

actions of staff and representatives who use the Sponsor Management System) then, exceptionally, the rules for UK Expansion Worker sponsors allow for a Proposed Authorising Officer to be outside the UK. In this situation the UK sponsor will be given a 'provisional rating' and just 1 Certificate of Sponsorship (CoS) initially. The Proposed Authorising Officer will then need to be the first worker that is sponsored. Once the Proposed Authorising Officer is in the UK, the sponsor will be able to re-rate to an 'A-rating' and request additional CoS (up to 5 maximum).

If there is a suitable settled worker in the UK who can act as the Authorising Officer then there is no need to rely on this exception and the UK Expansion Worker sponsor can be awarded an 'A-rating' and up to 5 CoS initially.

How Our Immigration Barristers Can Help

Our business immigration barristers are well placed to assist all types of companies and partnerships to secure UK Expansion Worker visas for their employees. Whether you are a small business or a large multinational looking to expand into the UK, our barristers are experts in the immigration options available and will guide you through the complex Home Office rules and policies. Our business immigration barristers can also assist UK employers to obtain a **UK Expansion Worker sponsor licence**

(<https://immigrationbarrister.co.uk/business-immigration/sponsor-licences/uk-expansion-worker-sponsor-licence/>), maintain their licence at the highest rating and comply with their sponsor duties.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to businesses as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

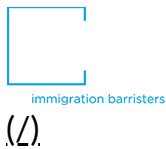
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WHAT CAN WE HELP YOU WITH?

To discuss your Global Business Mobility - UK Expansion Worker Visa application with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form.

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(<https://immigrationbarrister.co.uk/uk-expansion-worker-senior-or-specialist-worker-routes-compared/>)

By Annie Ee - Senior Legal Associate

05 Mar 2025

In This Article 1. Overview of the UK Expansion Worker and Senior or Specialist Worker Routes 2. Sponsorship Requirements for UK Expansion Workers and Senior or Specialist Workers 3. Salary Requirements for UK...

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UK Expansion Worker Visa (GBM) Application Guide

(<https://immigrationbarrister.co.uk/uk-expansion-worker-visa-gbm-application-guide/>)

By Annie Ee - Senior Legal Associate

18 May 2023

In our earlier post Senior or Specialist Worker Visa (GBM) FAQs, we provided answers to a number of frequently asked questions regarding the Senior or Specialist Worker Visa. In this application guide we look...

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By Georgina Griggs - Immigration Barrister

11 Oct 2022

Following the recent changes to the Immigration Rules, which took effect at 9:00am on 11 April 2022, it is clear that the Home Office is moving in one direction when it comes to business routes – sponsorship. With...

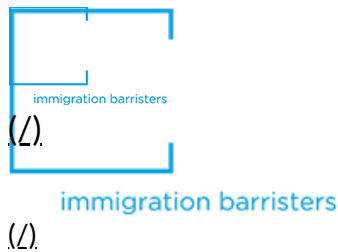
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